

ORIGINAL

(S E R V E D)
(JUNE 2, 1995)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

June 2, 1995

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

MOTION FOR REDUCTION OF TIME TO RESPOND GRANTED

American President Lines, Ltd. (APL), filed on June 1, 1995, its Request for Interpretation of the Protective Order in this proceeding. By a concurrently-filed motion, APL seeks pursuant to Rule 103, 46 CFR § 502.103, to have the time for responding to its Request reduced to five days, so that responses will be due on June 6, 1995. APL states that both the Request and the Motion were served by hand on June 1, 1995, on counsel for Sea-Land Service, Inc. (Sea-Land), and the Government of the Territory of Guam, et al.

(GovGuam). APL presents the following as establishing good cause for the requested reduction:

(1) As described in the Request, APL needs to make available to counsel for Matson Navigation Company (Matson) certain information regarding this proceeding as an important part of the due diligence review arising out of a memorandum of understanding between APL and Matson. APL states that the time constraints of the due diligence process cannot possibly be met without the requested reduction in response time.

(2) APL states that it should require no great effort on the part of the other parties to meet the requested response date; that the issue raised in the Request involves only the proper interpretation of the Protective Order, as to which other parties should be able to state their views in a few pages (as APL did in its four-page Request).

To expedite matters, APL attempted to contact the other parties on Friday afternoon, June 2, 1995, and determined that Sea-Land has no objection to the Motion for Reduction of Time to Respond to APL's Request for Interpretation of the Protective Order on June 6, 1995. While GovGuam's position could not be ascertained on such short notice, the Motion is otherwise justified and in the circumstances the Motion will be granted.

IT IS ORDERED:

Responses to the Request of American President Lines, Ltd. for Interpretation of the Protective Order in this proceeding are due on June 6, 1995, pursuant to Rule 103, 46 CFR § 502.103.


Frederick M. Dolan, Jr.
Administrative Law Judge